

		Corporations Code section 1702 provides in relevant part: If the agent for service of process is a natural person and cannot be found with due diligence at the address stated in the designation . . . and if no one of the officers or agents of the corporation . . . can be found after diligent search and it is so shown by affidavit to the satisfaction of the court, then the court may make an order that service be made by personal delivery to the Secretary of State or to an assistant or deputy secretary of state” (Corp. Code, § 1702; <i>see also</i> Code Civ. Proc., § 416.10 [providing manners of effecting service on corporation].) Here, the corporate defendant Ellis & Son Trucking, Inc., is a domestic corporation. (S. Mancinelli Decl. [ROA # 20] ¶ 2.) The court finds Plaintiff exercised reasonable diligence in attempting to serve the corporate defendant’s agent for service of process at the address designated for service . (See S. Mancinelli Decl. [ROA # 40] ¶¶ 3-4.) Plaintiff also establishes that no officer or agent of Defendant Ellis & Son Trucking can be found after diligent search. (D. Mancinelli Decl. [ROA # 42] ¶¶ 2-3; S. Mancinelli Supp. Decl. ¶¶ 5-10.) The moving party is ordered to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to July 16, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
6	Alayarian Company, a California Corporation v. VMA Harbor Place Holding Company, LLC	The Motion to Compel Response to Form Interrogatories brought by Defendant VMA Harbor Place Holding Company, LLC is DENIED, without prejudice, due to lack of service. While the instant motion is accompanied by a Proof of Service, which purports to have completed email service on Plaintiff, on March 26, 2026, the Proof of Service was not executed under penalty of perjury, as required. (See Code Civ. Proc., § 1013b, subd. (c) and Code Civ. Proc., § 1010.6, subd. (e)(2)(B).) Pursuant to Code of Civil Procedure section 2015.5, “[w]henever...any matter is required or permitted to be supported, evidenced, established, or proved by the sworn statement, declaration, verification, certificate, oath, or affidavit, in writing of the person making the same,” such document must be executed under penalty of perjury. (Code Civ. Proc., § 2015.5, subd. (a).) A declaration which is not executed in compliance with Code of Civil Procedure section 2015.5, “cannot be used as evidence.” (<i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal.4th 601, 618.) Additionally, as the instant motion has not been opposed by Plaintiff, there has been no waiver of any defect in service. The moving party to give notice.

7	1Sharpe Capital LLC v. Bullard	Plaintiff 1Sharpe Capital LLC demurs to the Answers filed by Defendants Sean Leonidas Bullard and Dena Lanae Bullard. For the following reasons, the demurrer is OVERRULED as to the first and eighth affirmative defenses and SUSTAINED WITH LEAVE TO AMEND as to the remainder of affirmative defenses. An answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant and (2) a statement of any new matter constituting a defense. Code Civ. Proc. § 431.30(b) (Emphasis added). The same pleading of ultimate facts rather than legal conclusions is required in pleading an answer as in pleading a complaint. (<i>See FPI Development, Inc. v. Nakashimi</i> (1991) 231 Cal.App.3d 367, 384 [stating rule that answer must allege facts “averred as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint.”].) The defenses shall be separately stated and are to refer to the causes of action which they are intended to answer. (Code Civ. Proc. § 431.30(g).) Only new matters must be specially pleaded, containing the ultimate facts sufficient to prove the defense. (<i>FPI Development, Inc. v. Nakashimi</i> (1991) 231 Cal.App.3d 367, 384.) A new matter is a matter alleged for the first time in the answer, creating a new issue in the case not presented by the complaint. (<i>Rancho Santa Margarita v. Vail</i> (1938) 11 Cal.2d 501, 543; <i>Coles v. Soulsby</i> (1862) 21 Cal. 47, 50 [“new matter” is “that matter which the defendant must affirmatively establish.”].) The determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 732.) The function of a demurrer is to test whether a pleading pleads sufficient allegations to give notice to other side as to the facts and theories of liability. (<i>Doe v. City of Los Angeles</i> (2007) 42 Cal. 4th 531, 550; <i>Abarrie v. State Farm Fire & Casualty Co.</i> (1988) 205 Cal.App.3d 530.) It is only necessary to plead ultimate facts and not evidentiary facts. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) “All that is necessary against a general demurrer is that upon a consideration of all the facts stated, it appears the party whose pleading is attacked by demurrer is entitled to any relief at the hands of the court against his adversary, notwithstanding the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action or defense shown ...” (<i>South Shore Land Co. v. Petersen</i>, 226 Cal.App.2d at 732-733.) “The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer.” (<i>Id.</i> at 733.) Each defense must be considered separately without regard to any other defense. If one of the defenses is free from the objections urged by the demurrer, then a demurrer to the entire answer must be overruled. (<i>Id.</i> at 734.) The demurrer to the First Affirmative Defense (Failure to State Facts Sufficient to Constitute Cause of Action) and Eighth Affirmative Defense
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